

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JUNE 30, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**IVER CAPITAL CORPORATION vs. LAURA RAYA HERNANDEZ
Case No. CL25-00119**

Plaintiff's Motion for Judgment on the Pleadings

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. The Court also notes that the matter is set for case management conference. At the hearing, the Court's tentative ruling is as follows:

If a served defendant files an answer, the answer must contest either a material allegation of the complaint or asserts an affirmative defense to it. 1 Edmon & Karnow [Weil & Brown] (The Rutter Group 2025) Civil Procedure Before Trial, §6:385, p. 127 [The function of an answer "is to put the case 'at issue' as to all important matters alleged in the complaint that defendant does not want to admit"].

Although Defendant's filing is not titled as an answer, it appears to have been intended as one, and Plaintiff has in this motion treated it as one.

Under C.C.P. §431.20(a), "Every material allegation of the complaint . . . not controverted in the answer, shall, for the purposes of the action, be taken as true."

A material allegation is one "essential to the claim . . . and which could not be stricken from the pleading without leaving it insufficient as to that claim." C.C.P. §431.10(a). An assignee of a debt must plead the assignment in the complaint. Emerald Bay Community Assn. v. Golden Eagle Ins. Corp. (2005) 130 Cal.App.4th 1078, 1091

["Generally, one suing as an assignee must allege and prove the assignment to recover on the assigned claim"].

Plaintiff's complaint contains allegations that the "auto deficiency account was purchased by Plaintiff" [¶4]; that "Plaintiff is a debt buyer [¶5]; that "Plaintiff is the sole owner of the account at issue [¶15]; and that "Original Creditor, for valuable consideration, assigned, transferred, and sent over [to another entity] Defendant's account number", and that this entity "for valuable consideration, assigned, transferred, and set [sic] over all interest in the contract and the vehicle pertaining to Defendant's account number . . . to Plaintiff . . . and Plaintiff is now the holder of the assigned rights in its chose of action of said claims and has the authority to assert the rights of all owners of the debt at issue" [¶19].

Defendant's response admits that the "debt in question was charged off and later sold to the debt collector", but claimed that Plaintiff's counsel "has not provided a contract that establishes my direct obligation to them" and "The only document they have presented does not demonstrate a valid contractual agreement between me and the debt collector." It further alleged Plaintiff failed to respond to repeated requests for "proof of a legitimate contract and a breakdown of the claimed debt".

The Court finds that the Defendant's response fails to contest a material allegation of the complaint or assert an affirmative defense. The Court also notes that there is no written opposition to the motion. Plaintiff has filed proof of service of the motion. The proof of service is attached to Plaintiff's proposed order.

ORDER

The motion for judgment on the pleadings is granted with leave to amend. The Defendant must file an amended answer within 30 days of the date of service of this order. CCP Section 438(h)(2). Plaintiff shall serve this order upon Defendant and file a proof of service with the Court.

LUCIA ACEVES VILLALOBOS vs. GENERAL MOTORS LLC
Case No. CU23-03523

Defendant's Motion to Tax Costs

TENTATIVE RULING

On the Court's own motion, the hearing for Defendant's motion to tax costs is continued to July 7, 2026 at 9:00 a.m.

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA L.P.; ET AL.
Case No. CU25-06641

Plaintiff VIDA LARA's Motion to Compel Further Responses to Special Interrogatory No. 1 Propounded on Defendants WINNRESIDENTIAL L.P. and LLAM REALTY MANAGEMENT INC.

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

A class action plaintiff is generally entitled through discovery to obtain contact information for putative class members, after *Belaire-West* notice, as to those putative class members who then fail to timely opt out of the disclosure of their contact information. Belaire-West Landscape, Inc. v. Superior Court (2007) 149 Cal.App.4th 554; Williams v. Superior Court (2017) 3 Cal.5th 531.

Access to contact information will often be warranted even before the adequacy of the named plaintiff and counsel's representation has been vetted, a class certified, absent putative class members made parties, and heightened duties imposed. Id. at 547.

It does not matter if the pleadings are not yet set, and the scope of the action is still uncertain.

That the eventual proper scope of a putative representative action is as yet uncertain is not obstacle to discovery a party may proceed with interrogatories and other discovery methods precisely in order to ascertain that scope. Id. at 551.

While undue burden can weigh against production of such contact information, the burden of proof falls on the defendant to produce evidence sufficient to quantify the burden that production would impose.

A trial court "shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.020, subd. (a).) However, as with other objections in response to interrogatories, the party opposing discovery has an obligation to supply the basis for this determination. An "objection based upon burden must be sustained by evidence showing the quantum of work required." (West Pico Furniture Co. v. Superior Court, *supra*, 56 Cal.2d at p. 417.) As the objecting party, Marshalls had the burden of supplying supporting evidence, but in response to Williams's motion to compel it offered none. Given this, the trial court had nothing in the record upon which to base a comparative judgment that any responsive burden would be undue or excessive, relative to the likelihood of admissible evidence being discovered. Id. at 549-550.

Another case suggested that “undue burden” be measured by weighing the cost, time, expense and disruption of normal business if responses were required against the probative value that might be realized from that discovery:

Because of the potential for promiscuous discovery imposing great burdens, even though ultimately the probative value of the discovered material may be questionable, trial judges must carefully weigh the cost, time, expense and disruption of normal business resulting from an order compelling the discovery against the probative value of the material which might be disclosed if the discovery is ordered. Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 223.

Defendants have in opposition produced a declaration by an executive vice president of Defendant WINNRESIDENTIAL CALIFORNIA L.P. While this declaration asserted the inability of this defendant to access records for about 65 of the over 250 different properties in California it had managed, and the need to review an estimated 13,000 files in locations throughout the state for all of the thousands in damages charges (for the other 185+ properties to which it still has access to those records), it failed to quantify what time and expense compliance would cost, nor to explain what if any steps were taken to make reasonable and good faith effort to access records and/or information not in its immediate possession (nor was any evidence at all provided for Defendant LLAM REALTY MANAGEMENT, INC.).

Under these circumstances, and with the subject discovery having been initially propounded back in August 2025, the court concludes that further responses/compliance will be required as soon as reasonably possible. Counsel are to appear for hearing to discuss the logistics and timetable for Defendants providing *Belaire-West* notice, and ultimate production to Plaintiff of the contact information, for the former renters whose contact information was sought in the subject special interrogatory and who do not timely opt out of the release of that information, to the extent such information is reasonably available to Defendants, after a reasonable and good faith effort to obtain the information, per the obligations imposed by C.C.P. §2030.220.

KRISTALYN GORDON; ET AL. vs. LISA KUSA DI GIACOMO; ET AL.
Case No. CU25-06969

Defendants STITCH IN TIME ANIMAL RESCUE (“STAR”) and LENNOX WELSH’s
Motion for Good Faith Settlement

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. The Parties should be prepared to address:

- (1) Due process concerns for any defendant that has not yet been served with the summons and complaint and their opportunity to object to any settlement.
 - (2) Discussion of Defendant Stitch in Time's citations at page 8:18-21 and how they provide authority for the position that the "[...] statute only requires notice to parties who have appeared[...]."
 - (3) Discussion of *Singer Co. v Superior Court* (1986) 179 Cal.App.3d 875.
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THOMAS SILIGO vs. NORTHBAY HEALTHCARE CORPORATION
Case No. CU26-03409

Plaintiff's Motion to be Relieved as Counsel

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows:

Plaintiff Counsel's unopposed motion to withdraw is GRANTED.

PANKAJ SHARMA; ET AL. vs. PAUL SUNAK; ET AL
Case No. FCS055977

- 1). Motion to Compel Further Responses to Discovery
- 2). Motion for Sanctions

TENTATIVE RULING

Motion to Compel Further Responses

Plaintiffs' motion to compel further responses to their first sets of form and special interrogatories, requests for production of documents, and requests for admission is denied without prejudice.

Plaintiffs' meet and confer declaration does not "state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented" (Code Civ. Proc. § 2016.040) and fails to establish that counsel engaged in a "serious effort at negotiation and informal resolution" that amounted to a sufficient "attempt to talk the matter over, compare their views, consult, and deliberate." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294; *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The declaration establishes only that Attorney Roundy did not immediately respond to Plaintiffs' counsel's attempts to meet and confer. (Decl. of Benjamin, ¶ 4.)

Counsel have not actually “talk[ed] the matter over, compare[d] their views, consult[ed], and deliberate[d]” regarding any of the discovery requests.

The parties are directed to actually meet and confer, in person, by telephone, or by videoconference, to compare their views, consult and deliberate regarding each discovery request and issue presented in this motion. If, after actually discussing the matter, the parties are ultimately unable to informally resolve each and every issue regarding the outstanding discovery, Plaintiffs may file a motion to compel further responses within 45 days of the date of the hearing or any later date agreed upon by the parties.

No monetary sanctions are awarded at this time.

Motion for Sanctions

The motion for sanctions filed by Cross-defendants Kennedy Wilson Properties Ltd. and Eric Rehn is denied.

The motion seeks sanctions pursuant to Code of Civil Procedure section 128.7 against Cross-complainant Paul Sunak and recently substituted attorney Ronald Roundy for the refusal to dismiss the cross-complaint. However, Cross-complainant Sunak, a represented party, could not have violated section 128.7 because the statute applies only to an attorney or a party without attorney who signs, files, or later advocates a pleading, motion, or similar paper. (Code Civ. Proc. § 128.7(b); *In re Marriage of Reese & Guy* (1991) 73 Cal.App.4th 1214, 1220.) Additionally, the court notes that, unlike the circumstances in *Peake v. Underwood* (2014) 227 Cal.App.4th 428, 449-450, Cross-defendants have not presented any evidence suggesting that Cross-complainant Sunak and his counsel do not actually believe in the merits of his claims. As for current attorney Ronald Roundy, counsel can only be sanctioned for his own conduct, not the conduct of his predecessors. (*Primo Hospitality Group, Inc. v. Haney* (2019) 37 Cal.App.5th 165, 175.) At the time the motion was filed and served, Attorney Roundy had not taken any action that might be construed as further advocating the cross-complaint. (See, *id.* at 175-176 [“at the time Libarle was served with the motion for sanctions, Libarle had not presented any of the objectionable claims in the complaint to the court, whether by signing, filing, submitting, or further advocating the claims, so he could not be held liable for sanctions under section 128.7 based on the notice of motion that was served”].) To the extent Attorney Roundy has advocated the cross-complaint in his opposition, that conduct is not a part of this motion.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlleXJTcGxIVHRXZz09>

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